

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

202200562834CUOE: Foulks vs. Waste Management
07/24/2026 in Department 44
Motion FOR PRELIMINARY APPROVAL OF CLASS ACTION AND PAGA
SETTLEMENT

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 4:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties, Use the subject line: SUBMISSION ON TENTATIVE, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Motion for Preliminary Approval of Class Action Settlement & Approval of PAGA Settlement (“Motion”)

Tentative Ruling:

Having now reviewed the Motion and all documents filed in support thereof, to include the supplemental materials filed in response to the Court’s ruling on May 20, 2026, the Court GRANTS the Motion subject to the following conditions:

1. Proof of timely service of the Amended Joint Stipulation of Class Action and PAGA Settlement and Release on the LWDA and supplemental materials filed in support of this Motion.
2. The filing of the operative pleading in this case, the Second Amended Complaint, which filing was attempted but rejected by the clerk’s office on July 1, 2026 for lack of a stipulation by the parties or leave of court for permission to file the SAC. To the extent the parties meet the other conditions of approval, the Court grants Plaintiff leave to amend and file the Second Amended Complaint.

3. Plaintiff shall submit a proposed revised order granting preliminary approval in accordance with this order together with a declaration and proof of timely service of the amended settlement agreement on the LWDA.

1. **Summary of Proposed and Preliminarily Approved Monetary Terms.**

Description	Proposed	Preliminarily Approved
Gross Settlement Amount	\$1,195,000	\$1,195,000
Less: Attorney Fees (not to exceed)	\$398,333	\$398,333
Less: Costs (not to exceed)	\$75,000	\$70,000
Less: Administrative Costs (not to exceed)	\$11,500	\$11,500
Less: PAGA Penalties	\$100,000	\$100,000
Less: Service Award	\$15,000	\$10,000
Net Settlement Before PAGA add-back	\$595,167	\$605,167
Plus PAGA Penalty to Aggrieved Employees (75% to LWDA / 25% to Aggrieved Employees) ¹	\$25,000	\$25,000
Net Settlement After PAGA add-back	\$620,167	\$630,167

2. **Timely Service.** The Motion was timely served on all parties, however, Plaintiff has yet to provide proof of service of the Amended Joint Stipulation of Class Action and PAGA Settlement and Release, and Supplemental materials filed in support of this motion on the LWDA. (Labor Code § 2699(s)(2); Code Civ. Proc. §§ 1005, 1010.6.)

3. **Conformity with Rules of Court.** The Rules of Court govern the length and format of law and motion papers, to include that no opening or responding memorandum may exceed 15 pages absent leave of court (See Cal. R. Ct., rule 3.1113(d).); the font must be at least 12 points (Cal. R. Ct., rule 2.104); conforming exhibits that are appropriately indexed, tabbed or bookmarked, and paginated (Cal. R. Ct., rules, 2.256(b) and 3.1110(f).) Counsel's compliance with these rules greatly aids in the review of papers filed with the Court, and also avoids delay in the Court's issuance of a decision on the merits. Noncompliance with these rules may cause delay in approval, or the Court to disregard noncompliant materials. (See Code Civ. Proc. §§ 187 & 128; see also *Bozzi v. Nordstrom* (2010) 186 Cal.App.4th 755, 765 [trial has broad discretion to refuse to consider papers that do not comply with rule 3.1300(d)].) Here, the motion exceeded the page limit imposed by the rules of court without court approval as required. Additionally, the

¹ Effective for PAGA Notices filed before June 19, 2024, penalties recovered are allocated 75% (LWDA) / 25% (Aggrieved Employees). For PAGA Notices filed on or after June 19, 2024, penalties recovered are allocated 65% (LWDA) / 35% (Aggrieved Employees). (Labor Code § 2699(m).)

attachments to the primary document were not properly bookmarked and labeled. These filing deficiencies delay the Court’s review and counsel are admonished to file compliant papers in the future.

4. **Fairness of Settlement.** With the supplemental declaration and materials filed in support of the Motion, the Court now has sufficient information to assess the fairness of the settlement. The Court has reviewed the motion, all supporting and supplemental documents filed in support thereof, and finds that Plaintiff has met its burden to show that the settlement was obtained after an arms-length negotiation, and is fair, adequate and reasonable. (*Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801 [adequacy and reasonableness factors include consideration of case strengths, risks, and posture; settlement amount; experience of counsel].) The Court finds that the allocation between Class Claims and PAGA claims are fair. (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 77.) Further, the Court finds that the scope of the releases as modified in the amended settlement agreement are fairly tailored to those that were or could be asserted in the lawsuit based on the facts alleged in the complaint. (*Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521, 538-39.)

5. **Conditional Class Certification.** The Court is satisfied that the proposed class should be certified for purposes of settlement as Plaintiff has met the requirements of Code of Civil Procedure, section 382, e.g., ascertainability, numerosity, well-defined community of interest, superiority.

The Class is defined as: “All individuals employed by Waste Management of California, Inc. in non-exempt positions in California at any time from February 1, 2018 through December 1, 2025.”

Aggrieved Employees under PAGA are defined as: “All individuals employed by Waste Management of California, Inc. in non-exempt positions in California at any time from February 2, 2021 through December 1, 2025.”

With the supplemental documentation, Plaintiff has now analyzed the range of liability, and has provided information regarding the number of estimated class members/aggrieved employees together with the average payout per employee, as follows:

Estimated Number of Class Members:	900
Estimated Class Payment:	\$705
Estimated Number of Aggrieved Employees:	Not provided
Estimated Average Allocation of PAGA Penalty to Aggrieved Employees:	To be calculated pro rata

Plaintiff is to provide actual numbers of class and PAGA aggrieved employees and the average payouts, with the range of payments, for each category at final approval.

6. **Appointments** The Court appoints plaintiff **Tyrik Foulks** as the class representative, plaintiff's counsel **Capstone Law APC** as class counsel, and **CPT Group, Inc.** as the Class Administrator.

7. **Notice to Class.** The Court is satisfied that the proposed class notice attached to the amended settlement agreement will adequately inform the class about the claims and satisfies the requirements of California Rules of Court, rule 3.766(d).

8. **Attorney Fee Award.** With respect to the request for attorneys fees, the Court has independently scrutinized Plaintiff's request for a percentage fee to be paid from the common fund in the amount of **1/3 of the gross settlement amount, or up to \$398,333**. At this juncture, and reserving the Court's discretion to select the method of fee recovery that best serves the facts at final approval and a reasonable fee award, the Court approves a percentage fee recovery up to 1/3 of the common fund, however, **a 25 percent fee is the benchmark utilized by the Court and counsel must justify a departure from this amount in connection with the final approval motion.** (*Lafitte v. Robert Half Internat. Inc.* (2016) 1 Cal.5th 480, 495.)

9. **Service Award.** Plaintiff in this case seeks a service award of **\$15,000**, which is allocated as a "settlement payment" for **\$10,000** and a service award in the amount of **\$5,000**. Here, regardless of how the parties characterize said payment the Court finds within its discretion that an award of up to **\$10,000** reflects the class representative's actual effort, risk, and contributions to the litigation, and is not disproportionate to plaintiff's expended effort, subject to a supporting declaration by Plaintiff at final approval detailing the work performed and hours expended in support of this case. (*Cellphone Termination Fee Cases* (2010) 186 Cal.App.4th 1380, 1393–1395.)

10. **Attorney Costs.** Costs are requested in an amount not to exceed **\$75,000**, with **\$60,381.61** expended to date for line items to include just under \$18,000 for "Court reporters, Transcripts, and Depositions," just over \$22,000 for "data analysis and developing a damages model," \$12,500 for mediation fees, \$1,500 for "travel-related costs," and \$427 for "research services" such as Westlaw. While these costs appear to be excessive for the litigation performed to date and include costs generally disallowed as overhead (e.g., Westlaw), subject to Plaintiff's substantiating such costs at final approval with documentation, the Court will approve costs up to \$70,000.

11. **Claims Administration Costs.** Costs are requested in an amount not to exceed **\$11,500**. The Supplemental Declaration of Raul Perez indicates that an invoice from the proposed administrator, CPT Group, Inc., was attached to the declaration as Exhibit 2. No exhibits were attached to Mr. Perez' supplemental declaration. Subject to Plaintiff's substantiating such costs at final approval, the Court will approve costs up to the requested amount at this preliminary stage.

12. **Cy Pres.** The parties have selected Legal Aid at Work, a 501(c)(3) non-profit legal services organization that assists low-income working families as the cy pres charity recipient in accordance with Code of Civil Procedure section 384.

Subject to the conditions and modifications set forth above, the Court GRANTS the motion and will sign the proposed order **to be modified in accordance with this order**.

The Court hereby sets the hearing for final approval on **Wednesday, March 24, 2027 at 1:30 p.m.** in Department 44 of the Ventura County Superior Court.

Plaintiff's counsel shall give notice.